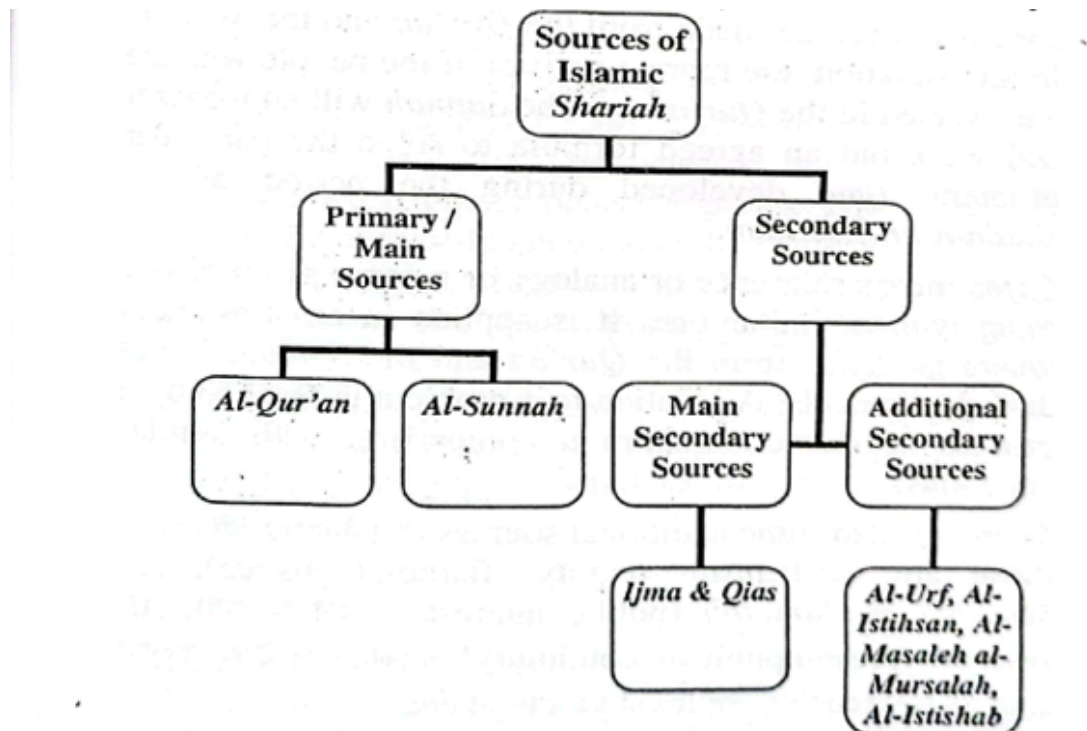


Chapter2 : Shariah & Constitution

Shariah:

Shariah means to endorse Law, to make something permissible or allowed. Terminologically it means the path leading to Allah, shown by Allah and His Messenger to humankind. The details of the Islamic way of life.

Sources of shariah:



additional secondary sources : 1. Istihsan 2. Istishab 3.

Masalih al Mursalah 4. Adat and Uruf 5. sadd aḍ-ḍarā'ī' and 6. šar' man qablanā

Shari'ah and Man-made laws:

<i>Shariah</i> differs from artificial in various ways-		
Basis	Man-made Law	<i>Shariah</i>
Completeness	Men make laws when they feel the need. These laws start with a few and then increase over the years.	Islamic Law is complete and perfect and includes all aspects of human life
Permanency	Artificial laws are not permanent	On the other hand, <i>Sharia'h</i> is permanent for all people all the time
Limitation of knowledge	Man does not know the future	Allah is All-knowing and All-powerful. He is the Most Wise and His laws are the best and complete.
Creation and creator	Man is a created being. His laws are the creation of the created being.	Allah is the creator, and His laws are for the men, His creations.
Universality	Man-made laws may be suitable for a particular nation or country. They cannot be universal.	Allah's laws are for all nations, all countries, and times. They are universal.
Selfishness	Man-made laws suit their own needs	Allah is above all needs, and His laws are for the good of all people and not for a few selfish people.

Characteristics of a constitution under Islamic Shariah:

1. Supremacy of Shari'ah .
2. Administration through consultation .
3. All wealth belongs to Allah .
4. Citizens share their property for the well-being of their fellow human beings .
5. It acts as the mouthpiece of the Government .
6. The role of public media is in the interest of Muslims and Islam .

7. The Government is the savior of distressed and oppressed people .
8. Government is duty-bound to produce basic needs .
9. The Government is the guardian of the building of good character .
10. It produces Allah-fearing and hereafter-faced citizens.

Explanation [sp24] :

1. Supremacy of Shari'ah:

In an Islamic constitution, Islamic law (Shari'ah) is the highest authority. All people must follow it, no matter their background. If any rule goes against the Qur'an or Sunnah, it will not be accepted, even if most people agree with it.

2. Administration through consultation

The government should make decisions through mutual discussion, not by one person's command. Islam encourages a system of consultation, which is like democracy, not dictatorship.

3. All wealth belongs to Allah

Allah is the real owner of everything, including money and property. People are only caretakers and must use their wealth the way Allah wants, not for wrong or selfish purposes.

4. Citizen shares their property for the wellbeing of their fellow human being :

People should help the government and the poor by paying taxes and giving charity. This helps build a balanced and fair society and pleases Allah.

5. It acts as mouthpiece of government :

The Islamic constitution clearly tells people their rights and duties. A person can know what's right and wrong by reading it. They don't need to go to court to understand justice.

6. Role of Public media is for the interest of Muslim and Islam :

Media like TV, radio, internet, and newspapers should promote good values and help Muslims live better lives in this world and the next. It should support education, culture, and morality.

7. The Government is savior of distress and oppressed people :

The Islamic government must help the poor, oppressed, and helpless people. It should protect them and work to remove injustice from society.

8. Government is duty bound to produce basic needs:

The government must provide basic needs like food, shelter, education, and healthcare. If possible, these should be

free. It must also use natural resources and help the unemployed.

9. The government is guardian for building of good character :

The main goal of the state is to build people with good character. Good behavior leads to paradise. The Prophet (SAW) was sent to perfect good manners.

10. It produces Allah fearing and hereafter faced citizen:

A good citizen fears Allah and knows that all actions are being watched. Such a person is honest and does good, even without police watching. These people benefit in both this world and the next.

chapter3 : State, Government,Citizen&Citizenship

What is the Quranic and sunnatic term for the chief executive? Describe his qualifications in an Islamic state [Sp24]

What are the qualities of the chief executive of an Islamic State? Discuss them with some details [sp23]

Chief Executive:

The Executive refers to the ruling class of a state. In its narrow sense, the term refers only to the chief executive or head of the state, the head of the Government, his ministers, and advisers.

The Quranic term for an executive is 'ulil amr' which means authority. The head of an Islamic state elected by the people would be the supreme leader of the people in an Islamic state.

Qualifications of the Chief Executive :

1. He must be a Muslim male
2. He will be physically sound and trustworthy .
3. He will bear an unblemished Character .
4. He will acquire enough knowledge about Islamic Shariah .
5. He will be dedicated to the rules of Islam .
6. He will be of sufficient age to be a complete man .
7. He must not have any greed for the post .

Note by : C233152_samin

8. He must be the most Allah-fearing man.

9. Able to run the state affairs to the point .

Details :

1. He must be a Muslim male:

The Khalifah must be Muslim, because Islam is the only way of life that covers all aspects of human life. And he is responsible for bringing all directions and interdictions of Islam into application. So, he must have belief in Allah and His revealed guidance. Furthermore, non-Muslim have no right to be a Khalifa of Islamic state. In this respect Allah says: “Never Allah will grant disbelievers to rule over the Muslim”. (An Nisah 41). Hence the Khalifah must have Iman and be a practicing Muslim.

The following Quranic Ayah can also be referred to in support of man’s leadership. The Almighty Allah declared, “**Men are the protectors (leaders) and maintainers of women, because Allah has given them more (strength) than the other and because they (men) support them from there means (income). Therefore, the righteous women are devoutly obedient (to Allah and to their husbands). They guard in the husband’s absence what Allah orders them to guard (their chastity and their husband’s property).**” (Sura al Nisa 4:34) .

A head of the state should be male. Because women are not allowed by the Islam to be a head of state. Concerning it, Allah

says: **“woman, a creature that is brought up in adornments and who in dispute cannot make herself clear ”** (Surah Al Zukhruf : 18)

2. He will be physically sound and trustworthy:

The executive must be physically fit, of sound mind and trustworthy. The Quran says:

“Truly the best of men for you to employ is the man who is strong and trustworthy.”

Regarding physical fitness the Messenger of Allah says: (A strong believer is better than the believer who is weak in physical strength). This physical strength is very much essential for the head of the state, because he is the commander-in-chief of army as well. He is also the chief Imam of the central Mosque of his state. A sick and weak man can never be Imam and commander-in-chief of armed forces of a nation.

The Prophet of Islam says: **“A person has no Iman if he cannot keep his trust (Amana) and a person has no religion if he can not keep his promise.”**

3. He will bear an unblemished Character:

It is noted that the sole function of the Prophet (SM) was to perfect the character of the people. As he says:

“Indeed I have been sent to complete the perfecting the good character.” Almighty Allah declared about His Prophet’s character : **“And you are on an exalted standard of character”**

Allah, the Exalted, wants all Muslims, more particularly the head of the Muslim community to be free from a blemish dual character and to be a model for their followers. That is why He sent His Messenger as a model and ordered us to follow him. He must be sane by birth because, if he is misbegotten, he may be affected by this character.

4. He will acquire enough knowledge about Islamic Shariah:

Knowledge of Islamic Shariah is essential for a head of state. The Prophet Muhammad (PBUH) stated that leadership should go to the one with the greatest knowledge of the Qur'an, followed by knowledge of the Sunnah, then precedence in migration, and lastly seniority in age if all else is equal. A Muslim should not lead or take a position over another respected and well-known Muslim in that area without permission. While some scholars believe this Hadith refers specifically to the prayer leader (Imam), others, like Mawlana Abdur Rahim, argue that it applies to both religious and political leadership. Supporting this, the Qur'an mentions that Allah chose Talut as a leader due to his superior knowledge and strength.

5. He will be dedicated for the rules of Islam:

The head of the state must be a devout and practicing Muslim, well-versed in Islamic Shariah, the Quran, and the Sunnah. His actions (Amal) must align with his knowledge (Ilm), as knowledge without practice is useless—compared in the Qur'an to a donkey carrying books it cannot understand. If a leader neglects Islamic duties, he cannot effectively enforce the law or guide others. Therefore, the leader should serve as an example, saying the people should follow him only as long as he follows Allah and His Messenger.

6. He will be of sufficient age of a complete man:

In Islam, a person is only accountable for their actions after reaching adulthood. Even then, people have different levels of responsibility based on their role. The head of the state has a responsibility similar to a Prophet's role with his followers. That's why the qualities needed for a Prophet are also expected in a leader of an Islamic state.

The head of state makes important decisions for the nation, so he should be emotionally balanced and have a good sense of judgment and understanding. It is believed that people usually gain this maturity after the age of 40. Also, a slave cannot be the head of state because he doesn't have the freedom or power to fulfill the duties of leadership.

7. He must not have any greed for the post:

In Islam, being the head of the state is a serious responsibility and the leader is accountable not only to the people but also to Allah. A person who is greedy or eager for power should not seek this position, because true leadership is not about desire for status, but about serving with sincerity.

The Prophet Muhammad (PBUH) taught that leadership should not be given to those who ask for it. In one Hadith, he said he does not appoint people who request leadership roles. In another Hadith, he told Abdur Rahman ibn Samara not to ask for leadership, because if someone gets it by asking, they will be left to face the responsibility alone. But if it comes to them without asking, Allah will help them.

So, wanting leadership for personal gain is foolish. But if someone is chosen by the people, then both the people and Allah will support them. Also, if the citizens do good and avoid sins under that leader's rule, the leader will also receive reward for their good deeds.

8. He must be the most Allah-fearing man:

The best citizen in an Islamic state is the one who truly fears Allah, because such a person will be motivated to fulfill all their duties—personal, social, official, and religious—with sincerity. A leader should come from among the best citizens, meaning someone who fears Allah the most.

Since life after death is the real and eternal life, the government should make plans that benefit people both in this world and in the hereafter. But this goal can only be achieved if the head of the state is himself deeply God-fearing.

Allah says in the Qur'an that the most honored person in His eyes is the one who has the most Taqwa (piety and fear of Allah), meaning someone who avoids sin and does good out of love and fear of Allah.

9. Able to run the state affairs to the point:

It is undoubtedly true that a head of the state must be a qualified leader, for history has witnessed that many nations were much more affected by the success and failure of leadership. So, the Prophet (PBUH) said, who will be leader he must have three qualities, these are as follows:

- (1) God-fearing, keeps him away from committing offense (disobeying Allah).
- (2) For his forbearance he is able to contain rages.
- (3) For his quality leadership, his adherents or followers become as his son (obedient as his son).

These qualities not only keep him away from all sorts of offenses but also prevents him from disloyalty, mischief, telling a lie, frankness', and all types of suppression, oppression as well.

So, he should have these qualities .

Evaluate the Legislative Organ of the Government under the Shuratic perspective and mention the functions of the legislative body of the state. [sp24]

How many kinds of majlish al-shura in an Islamiic state? Describe the functions of the members of shura in details. [sp23]

Legislative:

It is the law-making body of a state. Majlis e Shura is the Islamic term for legislative assembly. One of the functions of legislature is to consult with other experts in the relevant field in making Law. This is why the legislative assembly is termed as majlis e shura. It is composed of the learned and sagacious men who are elected by the people.

Q. How many kinds of majlish al-shura in an Islamiic state?

Answer : Two types. Majlis al-Shura Al-A'm (Parliament) and Majlis al-Shura al-Khas (senate).

Main functions of a member of Majlis al-Shura:

According to a proposed constitution, the functions of the members of Majlis al-Shura of a state run by an Islamic constitution are as follows:

1) Support and Develop Islamic Law

- Help improve and grow the respect, honor, and use of Islamic Law (Shari'ah), especially in areas not directly covered by the Qur'an, Sunnah, Ijma, or Qiyas, as long as it doesn't go against Allah's laws.

2)Review and Approve New Laws

- Check and decide whether to accept or reject any law (bill) proposed by the Government or by the Majlis (Assembly).

3)Check Current Laws

- Look at existing laws to see if they follow Islamic Law or not.

4)Approve the Government Budget

- Approve how the government plans to spend money, including the budget and audit reports of government offices.

5)Investigate Government Offices

- Review and approve investigation reports on different government departments and legal institutions.

6)Question Ministers if Needed

- Review the plans and ideas of ministers by asking questions or calling them to explain, if necessary.

7) Approve War and Peace Decisions

- Agree or disagree with the government's decision to declare war or make peace.

8) Approve International Agreements

- Approve or reject all kinds of international agreements and promises made by the government.

9) Share Opinions in Majlis

- Members must share their opinions during Majlis meetings and can do so freely, as long as it doesn't go against Islamic teachings or harm the country and its people.

Other Roles of the Majlis Members:

1) Explain Difficult Islamic Terms:

- The Majlis cannot change or cancel anything from the Qur'an and Sunnah. Only Allah and His Messenger had that authority.
- But if there are complicated or unclear terms in the Qur'an or Sunnah that haven't been explained yet, the Majlis can help explain their meaning.

2)Create New Laws When Needed:

- If a problem arises that isn't clearly answered by the Qur'an, Sunnah, Ijma (consensus), or Qiyas (analogy), the Majlis can make a new law.
- Before doing so, they must check if past Islamic scholars have dealt with the issue.
- If not, they can create a new law using Islamic principles.
- Examples include modern issues like plane hijacking, test-tube babies, or organ donation.

3)Clarify Complex Parts of the Law:

- Sometimes a verse in the Qur'an can have more than one meaning or can be applied in different ways.
- The Majlis helps figure out the correct meaning and assists the government in writing the law based on it.

4)Research How to Apply the Law:

- The Majlis should study and research how to best apply Islamic laws in real life.

- Their job includes finding practical ways to enforce laws in line with the Constitution.

Chapter1 :Traditional Politics & Islamic Politics

Q: Define Islamic Political system and discuss the main principles of it with proper evidences from the Quran and Sunnah

Or

Discuss three fundamental elements of Islamic Political System and then differentiate between Islamic and conventional system of politics [Sp 23]

Q : Explain the general guidelines that Islamic Shariah has given to run our political activities and then differentiate between the Islamic and conventional systems of politics [Sp24]

Politics :

Politics is management, Rectification. Politics is the management of public affairs.

Islamic politics:

1. The management of public affairs, both spiritual and material, according to Islamic shariah .
2. It is to conduct the public affairs concerning either to state or religion following al Shari'ah (Islamic Law), which is known to us as khilafat (Representation)

Three fundamental elements of Islamic politics:

_Islamic politics is based on three fundamental elements

- 1) Tawhid (Unity of Allah)
- 2) Risalat (Prophethood) and
- 3) Khilafah (vicegerency).

Note by : C233152_samin

The fundamental distinctions between the conventional and Islamic political system :

Basis	Conventional Politics	Islamic Politics
Sovereignty	In the conventional political system, the sovereignty belongs to the people.	while in the Islamic political system, sovereignty belongs to Allah.
Lawmaking authority	In a conventional system, the people make Law;	whereas; in the Islamic system, the law-giver is Allah.
Class division	In the conventional system, there is class division; some of them are the rulers and the others are subjects.	But in the Islamic system, the absolute ruler is Allah and all people are His vicegerents alike in their respective fields.
Nature of law	In the conventional system, the laws are changeable with the passage of time and demand,	but Islamic laws are unchangeable.
Equality	The conventional laws are not equal for all mankind	The Islamic laws are equal for all mankind

Six basic principles of the Islamic political system:

The Basic Principles of the Islamic Political System are-

1. Sovereignty of Allah
2. Khilafa of humankind
3. Legislation by Shura
4. Accountability of the Government
5. Independence of the Judiciary
6. Equality before the Law

Details :

1. Sovereignty of Allah

- Allah is the ultimate source of power and laws in Islam.
 - No one can change His laws—not even a government or parliament.
 - The Qur'an contains rules that must be followed for the good of humanity.
-

2. Khilafah of Mankind (Vicegerency of Man)

- Humans are Allah's representatives on earth.
- They should follow Allah's commands, though they have the freedom to choose.

- As His agents, humans will be judged by how they use this responsibility.
-

3. Legislation by Shura (Consultation)

- Decisions and laws should be made through consultation and teamwork.
 - Islam does not allow dictatorship.
 - The Qur'an and Sunnah are the main sources for making laws.
-

4. Accountability of Government

- The government is answerable first to Allah, then to the people.
- Rulers are elected and must serve the people according to Islam.

- Citizens have the right to question the government.
 - On Judgment Day, both rulers and people will be judged, but rulers have more responsibility.
-

5. Independence of Judiciary

- Courts must be free from government control.
 - Even rulers can be brought to court and treated like any other person.
 - Justice is a key part of an Islamic state.
-

6. Equality Before Law

- All people are equal under Islamic law.

- No discrimination based on race, color, gender, or background.
- The only thing that makes someone better in Islam is their piety (Taqwa).

Suggestion

Suggestion From 5DM:

1. Politics and islamic politics, fundamental elements and principle of Islamic political system. [\[Click here\]](#)
2. Shariah and sources of shariah.
Constitution and main features of islamic constitution. Different man made law and islamic law. [\[click here\]](#)
3. Executive and legislative. [\[click here\]](#)